



CHAPTER 34.

An Act to amend the Defence of the Realm Consolidation Act, 1914. A.D. 1915.
[16th March 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.--(1) Any offence against any regulations made under the Defence of the Realm Consolidation Act, 1914, which is triable by court martial may, instead of being tried by a court martial, be tried by a civil court with a jury, and when so tried the offence shall be deemed to be a felony punishable with the like punishment as might have been inflicted if the offence had been tried by court martial.

Right of
British sub-
ject charged
with offence
to be tried by
civil court.
5 Geo. 5. c. 8.

(2) Where a person, being a British subject but not being a person subject to the Naval Discipline Act or to military law, is alleged to be guilty of an offence against any regulations made under the Defence of the Realm Consolidation Act, 1914, he shall be entitled, within six clear days from the time when the general nature of the charge is communicated to him, to claim to be tried by a civil court with a jury instead of being tried by court martial, and where such a claim is made in manner provided by regulations under the last-mentioned Act the offence shall not be tried by court martial :

Provided that this subsection shall not apply where the offence is tried before a court of summary jurisdiction :

Provided also that before the trial of any person to whom this section applies, and as soon as practicable after arrest, the general nature of the charge shall be communicated to him in writing and notice in writing shall at the same time be given, in a form provided by regulations under the said Act, of his rights under this section.

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(3) In addition and without prejudice to any powers which a court may possess to order the exclusion of the public from any proceedings, if, in the course of the trial of a person for a felony under this section, application is made by the prosecution, in the interests of national safety, that all or any portion of the public should be excluded during any part of the hearing, the court may make an order to that effect, but the passing of sentence shall in any case take place in public.

22 & 23 Vict.
c. 17.

(4) The Vexatious Indictments Act, 1859, as amended by any subsequent enactment shall apply to a felony under this section as if it were included among the offences mentioned in section one of that Act, but a felony under this section shall not be triable by a court of quarter sessions.

(5) For the purpose of the trial of a person for a felony under this section the offence shall be deemed to have been committed either at the place in which the same actually was committed or in any place in the United Kingdom in which the offender may be found or to which he may be brought for the purpose of speedy trial.

(6) An indictment under this section shall not be deemed void or defective by reason that the facts or matters alleged in the indictment for the felony amount in law to treason; and if the facts or matters proved at the trial of any person indicted for any felony under this section amount in law to treason, the person shall not by reason thereof be entitled to be acquitted of such felony; but no person tried for such felony shall be afterwards prosecuted for treason upon the same facts.

(7) In the event of invasion or other special military emergency arising out of the present war, His Majesty may by Proclamation forthwith suspend the operation of this section, either generally or as respects any area specified in the Proclamation, without prejudice, however, to any proceedings under this section which may be then pending in any civil court.

(8) The expression "British subject" in this section includes a woman who has married an alien but who before the marriage was a British subject.

(9) In the application of this section to Scotland "a civil court with a jury" means the High Court of Justiciary, and subsection (4) shall not apply.

(10) This section shall apply in the case of offences committed and persons arrested before as well as after the passing of this Act.

Witnesses.

2. In Ireland a person charged with an offence against any regulations made under the Defence of the Realm Consolidation Act, 1914, before a court martial shall not, nor shall the wife

or husband, as the case may be, of a person so charged, be a competent witness, whether the person so charged is charged severally or jointly with any other person. A.D. 1915. —

3. This Act may be cited as the Defence of the Realm Short title.
(Amendment) Act, 1915.

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FOR

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